PARTNERS of the AMERICAS
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Gender Identity Policy

It is the policy of Partners of the Americas (Partners) to treat all individuals with dignity and respect and to provide a workplace and environment that is free from discrimination whether that discrimination is based on race, color, religion, sex (including gender identity or pregnancy), national origin, disability, political affiliation, marital status, membership in an employee organization, age, sexual orientation, or other non-merit factors. Partners recognizes that there can be differences between physical sex and gender identity and/or expression. Partners will at no time discriminate against people on the grounds of transvestism, transsexualism, intersex conditions or any process of gender reassignment, whether it has begun or been completed. Where this policy refers to 'trans people', it has in mind people living with any of these identities. When it refers to 'gender identity', it covers both the fixed identity of people living in the gender of their birth and the more fluid identities of many trans people. Transphobic abuse, harassment or bullying (name-calling/derogatory jokes, unacceptable or unwanted behavior, and intrusive questions) is a serious disciplinary offence and will not be tolerated at Partners. Any and all complaints of transphobic abuse or harassment will follow our guidelines under workplace bullying and harassment.

The purpose of this policy is to provide descriptions and guidance to address some of the common questions regarding gender identity in the workplace and appropriate behavior.

- Sex versus Gender: Sex (i.e., male or female) is assigned at birth based on a combination of a baby's biological characteristics, including chromosomes, hormones, and reproductive organs, and is originally documented on a person's birth certificate. The World Health Organization defines gender as the "socially constructed roles, behaviors, activities, and attributes that a given society considers appropriate for men and women." These characteristics are traditionally referred to as "masculine" or "feminine."

- Transgender: Transgender individuals are people with a gender identity that is different from the sex assigned to them at birth. Someone who was assigned the male sex at birth but who identifies as female is a transgender woman. Likewise, a person assigned the female sex at birth but who identifies as male is a transgender man. Some individuals who would fit this definition of transgender do not identify themselves as such, and identify simply as men and women, consistent with their gender identity. The guidance discussed in this policy applies whether or not a particular individual self-identifies as transgender.

- Transition: Some individuals will find it necessary to transition from living and working as one gender to another. Trans or transgender is an umbrella term referring to people with diverse gender identities and expressions that differ from stereotypical gender norms. It includes but is not limited to people who identify as transgender, trans woman (male-to-female), trans man (female-to-male), transsexual, cross-dresser, gender non-conforming, gender variant or gender queer. These individuals may seek some form of medical treatment such as counseling, hormone therapy, electrolysis, and reassignment surgery. These treatments may be deemed medically necessary for many individuals, based on determinations of their medical providers. Some individuals, however, will not pursue some (or any) forms of medical treatment because of their age, medical condition, lack of funds, other personal circumstances, or because they may not feel the treatment is necessary for their well-being. All individuals should be aware that not all transgender individuals will follow the same pattern, but they all are entitled to the same consideration as they undertake the transition steps deemed appropriate for them, and should all be treated with dignity and respect.

- Gender identity: It is each person's internal and individual experience of gender. It is their sense of being a woman, a man, both, neither, or anywhere along the gender spectrum. A person's gender identity may be the same as or different from their birth-assigned sex. Gender identity is fundamentally different from a person's sexual orientation.

- Gender Expression: It is how a person publicly presents, represents and expresses their gender. This can include behavior and outward appearance such as dress, hair, make-up, mannerisms, speech patterns, body language, voice and other characteristics and behaviors. A person's chosen name and pronoun are also common ways of expressing gender.

All Employee or Non-Employee Transitions

There are several issues that commonly generate questions from individuals who are working with a transitioning employees or non-employees (such as interns, program participants, volunteers, consultants and independent contractors). In order to ensuring that transitioning employees and non-employees are treated with dignity and respect, Partners offer the following guidance on those issues.

Confidentiality and Privacy

An individual's transition should be treated with as much sensitivity and confidentiality as any other individual's significant life experiences, such as hospitalization or family difficulties. Employees and non-employees in transition often want as little publicity about their transition as possible. They may be concerned about safety, employment or other issues if other people or employers become aware that he or she has transitioned. Moreover, medical information received about individual employees is protected under the Privacy Act (5 U.S.C. 552a). Supervisors should be sensitive to these special concerns and advise employees not to spread information concerning any employee or non-employee who is in transition: gossip and rumor-spreading about gender identity are inappropriate. Other individuals may be given only general information about the employee or non-employee transition. Personal information about the individual in transition should be considered confidential and should not be released without the individual's prior agreement. Questions regarding the individual in transition should be referred to the individual himself or herself. It should be noted, however, that questions regarding a coworker's medical process, body, and sexuality are inappropriate. Issues that may arise should be discussed as soon as possible confidentially between the individual and their supervisor or other member of Senior Management.

Dress and Appearance

Once an individual has informed Partners that he or she is transitioning, Partners dress codes should be applied to individual transitioning to a different gender in the same way that they are applied to others of that gender. Dress codes should not be used to prevent a transgender individual from living full-time in the role consistent with his or her gender identity.

Names and Pronouns

Supervisors, coworkers, and others should use the name and pronouns appropriate to the gender the employee is now presenting. Refer to each person by the name, and the gender-specific pronoun, by which the person wants to be called. If you don't know the proper term, please ask in a tactful way. Further, supervisors, coworkers, and others should take care to use the correct name and pronouns in records and in communications with others regarding the individual in transition. Continued intentional misuse of the individual's new name and pronouns, and reference to the individual's former gender by supervisors, coworkers, and others is contrary to the goal of treating transitioning employees with dignity and respect. It creates an unwelcoming work environment and may be considered harassment.

Restrooms, Lodging and Other Related Facilities

For transitioning individuals, this means that, once he or she has begun acting and/or working in the gender that reflects his or her gender identity, Partners should allow access to restrooms, lodging and other facilities consistent with his or her gender identity. Partners will protect the transitioning individual's rights and privacy and therefore may not inform others of the individual's sexual orientation, gender identity or gender expression. Transitioning individuals should not be required to have undergone or to provide proof of any particular medical procedure (including gender reassignment surgery) in order to have access to facilities designated for use by a particular gender. Under no circumstances may anyone require an individual to use facilities or lodging that are inconsistent with the individual's gender identity.

Assignments and Duties

For a transitioning individual, once he or she has begun acting and/or working full-time in the gender that reflects his or her gender identity, Partners should treat the individual as that gender for purposes of all job assignments and duties. Transitioning individual should not be required to have undergone or to provide proof of any particular medical procedure (including gender reassignment surgery) in order to be eligible for gender-specific assignments or duties.

Employee Transitions

Recordkeeping

For employees, the employee's personnel folder and other employee records (payroll, benefits documents, and so on) should be changed to show the employee's new name and gender, once the employee has begun working full-time in the gender role consistent with the employee's gender identity. The employee should submit a request to the Administration Officer to update his or her personnel

information and records. Employees will also be permitted to change any identity documentation, such as but not limited to email account, business cards, etc.

Sick and Medical Leave

Employees receiving treatment as part of their transition may use sick leave in accordance with Partners sick leave policy. Employees who are qualified under the Family Medical Leave Act may also be entitled to take medical leave for transition-related needs for themselves or for their families.

Insurance Benefits

Employees in transition who already have insurance benefits must be allowed to continue their participation, and new employees must be allowed to elect participation, based on their updated names and genders. If the employees in transition are legally married at the time of the transition, the transition does not affect the validity of that marriage, and spousal coverage should be extended or continued even though the employee in transition has a new name and gender.

Summary

Partners intends to provide for its employees, and non-employees (such as interns, program participants, volunteers, consultants and independent contractors), an environment that treats all of its employees and non-employees with dignity and respect and to provide a workplace environment that is free from discrimination including sex and/or gender identity. Our approach is to be as inclusive and accommodating for all individuals, regardless of identities. This policy applies to all individuals when interacting with members of the Partners staff or network.